

25PSCV00027 25PSCV00027

County: los-angeles

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Case Number: 25PSCV00027 Hearing Date: July 7, 2026 Dept: G

Petitioner

Wei Liu's Petition for Approval of Compromise of Claim or Action or Disposition
of Proceeds of Judgment for Plaintiff/Claimant Aiden Lew, a Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Petitioner

Wei Liu's Petition for Approval of Compromise of Claim or Action or Disposition
of Proceeds of Judgment for Plaintiff/Claimant Aiden Lew, a Minor is DENIED
WITHOUT PREJUDICE.

BACKGROUND

This

is a personal injury action. On June 18, 2023, plaintiff Aiden Lew (Lew), the minor child of petitioner Wei Liu (Liu), allegedly sustained injuries at a hotel property owned and operated by defendant 9920 Management LLC (9920 Management) when a defective shower caused him to slip and fall and hit a nearby toilet.

On

January 3, 2025, Lew filed the Complaint, alleging causes of action for (1) general negligence, (2) premises liability, and (3) products liability.

On

September 10, 2025, the parties informed the court that they settled the case. On May 12, 2026, the court continued a hearing to allow Liu to sign the petition for approval of minor's compromise. On May 29, 2026, Liu filed the petition, which is unopposed. On June 2, 2026, the court continued the hearing on the petition.

This

case is set for an order to show cause re: dismissal (settlement) and minor's compromise on July 7, 2026.

ANALYSIS

Liu

seeks the court's approval of a settlement reached between the plaintiffs and 9920 Management. For the following reasons, the court DENIES the petition WITHOUT PREJUDICE.

Legal

Standard

An

enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final settlement. (*Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem. (*Id.* at 1606.)

Probate

Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section 3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further

order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person.

(Prob. Code, § 3601, subd. (a).)

In

cases pursuant to Probate Code section 3601, "unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability." (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, "[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events." (Cal. Rules of Court, rule 7.955(a)(2).)

Discussion

Pursuant

to the settlement agreement reached between the parties, 9920 Management agrees to pay a total of \$40,000.00 to Lew.

(Pet., ¶ 10.) The petition requests that \$4,037.50 be used for medical expenses, \$16,000.00 be used for attorney's fees, \$1,510.17 be used for other expenses, and \$18,452.33 for Lew. (Pet., ¶¶ 12–16.)

"In

determining whether to grant a guardian ad litem's petition to approve a settlement of the ward's claims, a court must determine whether it is reasonable and in the minor's best interest."

(Chui v. Chui (2022) 75 Cal.App.5th 873, 899.) Generally, courts must consider the following factors: 1) the circumstances of the accident or other incident giving rise to the litigation, particularly the facts bearing on the payor's potential liability and the minor's damages; 2) the amount of the proposed settlement; 3) how the settlement will be paid (e.g. in a lump sum or via an annuity); 4) the nature of the injury and the minor's current medical status and prognosis; and

5) the amount of attorneys' fees and other transaction costs being requested. (See, e.g., *Kostakos v. Holewinski* (Dec. 6, 2019, 37-2018-00029286-CU-PA-CTL) [nonpub. opn.], applying Cal. Rules of Court, rule 7.950.)

Regarding

medical expenses, the petition reflects that East Bay Upright MRI charged \$2,850.00. (Pet., ¶¶ 12b(5)(b)(i)(A)–12b(5)(b)(i)(C); see also Pet., p. 46.) However, the petition lists \$2,137.50 as the amount of the negotiated reduction and the amount to be paid from the settlement, but those totals do not add up to \$2,850.00. (Pet., ¶¶ 12b(5)(b)(i)(E)–12b(5)(b)(i)(F).) NorCal Health Group charged \$1,290.00. (Pet., ¶¶ 12b(5)(b)(ii)(A)–12b(5)(b)(ii)(C); see also Pet., p. 18.) However, the petition lists \$900.00 as the amount of the negotiated reduction and the amount to be paid from the settlement, but those totals do not add up to \$1,290.00. (Pet., ¶¶ 12b(5)(b)(ii)(E)–12b(5)(b)(ii)(F).) Advanced Pain Management charged \$1,500.00. (Pet., ¶¶ 12b(5)(b)(iii)(A)–12b(5)(b)(iii)(C); see also Pet., p. 12.) However, the petition lists \$1,000.00 as the amount of the negotiated reduction and the amount to be paid from the settlement, but those totals do not add up to \$1,500.00. (Pet., ¶¶ 12b(5)(b)(iii)(E)–12b(5)(b)(iii)(F).) Based on this information, the court finds that Petitioner fails to properly account for the requested medical expenses.

Regarding

attorney's fees, Liu did not execute a retainer agreement with Lew's counsel. (Pet., ¶ 17a(2).) Counsel did not provide a declaration as Attachment 13a. (See Pet., ¶ 13a, instructing that "[i]f fees are requested, attach as Attachment 13a a declaration from the attorney explaining the basis for the request. . . .") Considering this evidence, or lack thereof, the court finds that Petitioner fails to properly account for the requested attorney's fees so that the court is unable to determine whether fees are reasonable or not.

Regarding

litigation costs, the petition reflects litigation costs of \$1,510.17. (Pet., ¶ 13b.) The litigation costs are simply labeled "Attorney Cost." The court cannot determine from this description whether the costs are distinguishable from the attorney's fees requested, whether the type of costs are recoverable, or whether the costs were reasonably incurred. (Pet., ¶ 13b.)

The

remaining \$18,452.33 will be deposited in insured accounts in one or more

financial institutions in this state, subject to withdrawal only on authorization of the court. (Pet., ¶ 18b(2).) However, Liu did not provide the name, branch, and address of each depository, as required. (See Pet., ¶ 18b(2), instructing the petitioner to specify “[t]he name, branch, and address of each depository . . . in Attachment 18b(2).”)

Upon review, the court finds the amount awarded to the minor to be reasonable but that the disposition of the funds is not proper without providing the appropriate information.

Accordingly, the petition to confirm minor’s compromise is DENIED WITHOUT PREJUDICE. The court ORDERS Liu to FILE a revised MC-350 PETITION correcting the deficiencies noted above.

CONCLUSION

For these reasons, the petition for approval of minor’s compromise is DENIED WITHOUT PREJUDICE. Petitioner Wei Liu is ORDERED to FILE a revised MC-350 PETITION.